

25NNCV08121 25NNCV08121

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 25NNCV08121 Hearing Date: September 14, 2026 Dept: B

Hon. Victor

Avila, Dept B

MOTION TO BE RELIEVED AS
COUNSEL

Hearing Date: 9/18/26¿

CASE NO.: 25NNCV08121

CASE NAME: Chavez v. City of Rosemead, et al.

Moving Party: Plaintiff's Counsel

Responding Party: None

Notice: Sufficient¿

Ruling: GRANTED

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30

P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

Attorney

Daniella Saeedian, Esq. (Counsel) represents plaintiff Maria Victoria Chavez (Plaintiff) in this premises liability action. On August 18, 2026, Counsel filed the instant motion to be relieved as counsel as to Plaintiff. Counsel cites an irreparable breakdown in the attorney client relationship.

No

opposition has been filed as of September 10, 2026.

LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (Code of Civ. Proc., § 284(2).) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court, 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion) (Cal. Rules of Court, rule 3.1362(a)), MC-052 (Declaration) (Cal. Rules of Court, rule 3.1362(c)), and MC-053 (Proposed Order) (Cal. Rules of Court, rule 3.1362(e)). The proposed order must specify all hearing dates scheduled in the action or proceeding, including the date of trial, if known. (Cal. Rules of Court, rule 3.1362(e).)

Further, the requisite forms must be served on the client and all other parties who have appeared in the case. (Cal. Rules of

Court, rule 3.1362(d).) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court. (Cal. Rules of Court, rule 3.1362(e).) A motion to withdraw will not be granted where withdrawal would prejudice the client. (Ramirez v. Sturdevant, (1994) 21 Cal.App.4th 904, 915.)

DISCUSSION

Counsel has filed the notice of motion to be relieved as counsel on form MC-051 (Cal. Rules of Court, rule 3.1362(a)), a declaration on form MC-052 (Cal. Rules of Court, rule 3.1362(c)), and proposed order on form MC-053. (Cal. Rules of Court, rule 3.1362(e).) Counsel's declaration identifies a Case Management Conference scheduled for August 24, 2026, that has now passed. (Saeedian Decl., ¶ 4.)

Counsel declares that there has been an irreparable breakdown in the attorney client relationship due to conduct on the part of Plaintiff that has made continued representation unfeasible. (Saeedian Decl., ¶ 2.) Counsel declares that further explanation would implicate attorney-client privileged communications and counsel's ethical obligations. (Ibid.)

The Court finds that Counsel has set forth sufficient grounds to be relieved as counsel for Plaintiff. Also, the motion complies with the requirements of California Rules of Court, rule 3.1362. Given that a trial date is not set in this action, the Court finds that withdrawal at this stage of litigation will not prejudice Plaintiff. Plaintiff has not filed an opposition contending otherwise.

CONCLUSION AND ORDER

Attorney Daniella Saeedian, Esq's motion to be relieved as counsel is GRANTED.

MOVING PARTY shall submit a proposed order consistent with this ruling within 10 days from this date and provide notice.